

Chaman vs State Of U.P. on 17 August, 2023

Author: Raj Beer Singh

Bench: Raj Beer Singh

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2023:AHC:165030

Reserved on 28.07.2023

Delivered on 17.08.2023

Court No. - 78

Case :- CRIMINAL APPEAL No. - 3631 of 2021

Appellant :- Chaman

Respondent :- State of U.P.

Counsel for Appellant :- Rakesh Pati Tiwari

Counsel for Respondent :- G.A.

Connected with

Case :- CRIMINAL APPEAL No. - 3770 of 2021

Appellant :- Amit @ Malu

Respondent :- State of U.P.

Counsel for Appellant :- Virendra Singh Yadav

Counsel for Respondent :- G.A.

Connected with

Case :- CRIMINAL APPEAL No. - 3804 of 2021

Appellant :- Omveer Singh

Respondent :- State of U.P.

Counsel for Appellant :- Krishna Gopal, Praveen Kumar Srivastava

Counsel for Respondent :- G.A.

Hon'ble Raj Beer Singh, J.

1. All these three appeals are connected and arise out of one and same judgement, passed by the trial court, and thus, these appeals are being decided together by this common judgment.
2. These three appeals have been preferred against judgment and order dated 10.08.2021, passed by the Additional Sessions Judge/F.T.C.-I, Bareilly in S.T. No. 662 of 2015, arising out of case crime no. 612 of 2014, under Sections 376-D, 392, 506 IPC, police station Cantt., district Bareilly, whereby, all the three accused-appellants, namely, Chaman, Amit @ Malu and Omveer Singh have been convicted under Sections 376-D, 506 IPC and they were sentenced to 20 years rigorous imprisonment along with fine of Rs. 20,000/- each under Section 376-D IPC and four years rigorous imprisonment under Section 506 IPC. Both the sentences were directed to run concurrently. In default of payment of fine, they have to undergo one month additional rigorous imprisonment.
3. Heard learned counsels for the appellants and learned Additional Government Counsel for the State.
4. According to prosecution version, on 30.10.2014 prosecutrix submitted a tehreer (Exhibit-Ka-1) at the police station, alleging that on 28.10.2014 while she was cutting fodder in jungle near Moharo Nala, at about 12:00 noon all the three accused-appellants, namely, Chaman, Amit @ Malu and Omveer Singh started abusing and asked her as to where she has concealed the gunny bag of sugar. The accused-appellant Chaman over-powered her and committed rape upon her at the point of pistol. After a while, accused-appellant Omveer Singh and thereafter accused-appellant Amit @ Malu have also committed rape upon her. After that all the three accused-appellants ran away by snatching her ear rings. The prosecutrix came to her home and informed her mother-in-law and the case was registered on 30.10.2014 under Sections 376-D, 392, 506 IPC.
5. The prosecutrix was medically examined by PW-1 Dr. Shashi Katiyar. During investigation, statements of witnesses were recorded. After completion of investigation, charge-sheet was submitted against all the three accused-appellants.
6. The trial court framed the charges under Sections 376-D, 392, 506 IPC against all the three accused persons, who pleaded not guilty and claimed trial.
7. In order to prove its case, the prosecution has examined four witnesses. PW-1 Dr. Shashi Katiyar has medically examined the prosecutrix. PW-2 is the informant/prosecutrix. PW-3 lady constable Jyoti is a formal witness, who has recorded first information report. PW-4 S.I. Raju Rao has

investigated the case.

8. After prosecution evidence, accused-appellants were examined under Section 313 Cr.P.C., wherein, they have denied prosecution evidence and claimed that they were falsely implicated. However, no evidence was adduced in defence.

9. After hearing and analysing evidence on record, all the three accused-appellants were convicted by the trial court vide judgment and order dated 10.08.2021 and sentenced as stated in paragraph no. 2 of this judgment. Being aggrieved of the same, accused-appellants have preferred above-stated three appeals.

10. It has been argued by learned counsel for the accused-appellants that the impugned judgment and order is against facts and law and thus, liable to be set aside. The prosecutrix is a mature and married lady, aged about 35 years, and in her statement in cross-examination, she has clearly stated that the appellants-accused have not committed any incident with her. There are material contradictions and inconsistencies in the statement of prosecutrix. As per statement of prosecutrix, in her examination-in-chief, all the three accused appellants have committed gang rape upon her but in her medical examination report, no injury at all has been found on the person of prosecutrix. The alleged incident has been shown of 28.10.2014 at 12:00 noon in sugar-cane field and first information report of the alleged incident was lodged after two days on 30.10.2014 by submitting a typed written tehereer. Learned counsel submitted that the delay of two days in first information report, coupled with the fact that the tehereer was type written, goes to show that the first information report was lodged after much consideration. Learned counsel for the appellants has referred the cross-examination of prosecutrix/ PW-2, wherein, she has stated that she was having blurred eye vision and at the time of incident she was not wearing spectacles and that she does not know accused-appellants present in the court. She has also stated that first information report was lodged at the instance of some villagers. She has also stated that appellants have not done any bad/ foul act against her. She further stated that neither appellants have abused her nor committed any robbery nor they have threatened her. Referring to the statement of victim and the facts emerged in her cross examination, it was submitted that statement of prosecutrix is wholly unreliable. The trial court has not appreciated the evidence in correct perspective and thus, the judgment and order of the trial court is liable to be set aside.

11. Learned A.G.A. has opposed the appeals and argued that the conviction of accused-appellants is based on evidence. In her examination-in-chief, the prosecutrix has clearly stated that all three accused appellants have committed rape upon her. Referring to the fact that earlier appellants have threatened the prosecutrix, it was submitted that prosecutrix has retracted from her version in her cross-examination due to the threat extended by the accused-appellants.

12. I have considered the rival submissions of parties and perused the record.

13. In her statement, the prosecutrix / PW-2 has inter-alia stated that about one and a quarter year back, while she was cutting the grass/fodder in jungle, at about 11:00-12:00 noon, all the three accused-appellants, namely, Chaman, Amit @ Malu and Omveer Singh came and abused her and

asked her as to where she has concealed the gunny bag of sugar. She denied the said allegation. Thereafter, all the accused-appellants have thrown her on the ground and all the three accused-appellants committed rape upon her and after that they ran away by snatching her ear rings and extending threat that if she dared to make a complaint, they would kill her. In her cross-examination, she has inter-alia stated that she is having blurred eye vision and at the time of incident she was not wearing spectacles and that she does not know accused-appellants present in the court. She has further stated that she has lodged the first information report at the instance of some villagers and that accused-appellants did not commit any bad/foul act against her. She has further stated that neither accused-appellants committed any robbery nor they abused her and they have also not extended any threat to her. Thus, in her cross-examination, she turned completely hostile.

14. The expression "hostile witness" is coined to mean testimony of a witness turning to depose in favour of the opposite party. It is well within the powers of the court to make an assessment, being a matter before it and come to the correct conclusion. It is settled legal proposition that the evidence of a prosecution witness cannot be rejected in toto merely because the prosecution chose to treat him as hostile and cross-examined him. The evidence of such witnesses cannot be treated as effaced or washed off the record altogether but the same can be accepted to the extent their version is found to be dependable on a careful scrutiny thereof. (Vide *Bhagwan Singh v. State of Haryana*, (1976) 1 SCC 389, *Rabindra Kumar Dey v. State of Orissa*, (1976) 4 SCC 233, *Syad Akbar v. State of Karnataka*, (1980) 1 SCC 30 and *Khujji v. State of M.P.*, (1991) 3 SCC 627, SCC p. 635, para 6.).

15. In *State of U.P. v. Ramesh Prasad Misra* [(1996) 10 SCC 360: 1996 SCC (Cri) 1278] the Court held that evidence of a hostile witness would not be totally rejected if spoken in favour of the prosecution or the accused but required to be subjected to close scrutiny and that portion of the evidence which is consistent with the case of the prosecution or defence can be relied upon. A similar view has been reiterated by the Apex Court in *Balu Sonba Shinde v. State of Maharashtra* [(2002) 7 SCC 543: 2003 SCC (Cri) 112], *Gagan Kanojia v. State of Punjab* [(2006) 13 SCC 516: (2008) 1 SCC (Cri) 109], *Radha Mohan Singh v. State of U.P.* [(2006) 2 SCC 450: (2006) 1 SCC (Cri) 661], *Sarvesh Narain Shukla v. Daroga Singh* [(2007) 13 SCC 360: (2009) 1 SCC (Cri) 188] and *Subbu Singh v. State* [(2009) 6 SCC 462: (2009) 2 SCC (Cri) 1106].

16. The legal position can be summarised to the effect that the evidence of a hostile witness cannot be discarded as a whole, and relevant parts thereof which are admissible in law, can be used by the prosecution or the defence but required to be subjected to close scrutiny and that portion of the evidence which is consistent with the case of the prosecution or defence can be relied upon.

17. Bearing the aforesaid legal position in mind, in the instant case it is apparent that the prosecutrix, in her examination-in-chief, has made allegations of gang rape against the appellants/accused but in her cross-examination, she has categorically retracted the said version and stated that she is having blurred eye vision and she was not wearing spectacles and that she does not know accused-appellants present in the court. She has further stated that she has lodged the first information report at the instance of some villagers and that accused-appellants did not commit any bad/foul act against her. She has further stated that neither accused-appellants committed any

robbery nor they abused her and they have also not extended any threat to her. The Trial Court noted that her cross-examination has been conducted after several months of her examination-in-chief and that she has identified her thumb impression at the Exhibit-Ka-3 and she has also identified her photograph on her statement under Section 164 Cr.P.C. and thus, the version of prosecutrix that she is having blurred eye vision cannot be believed and that she may have been threatened by the accused persons to depose in their favour. Here it would be pertinent to mention that this observation of the trial court is based on conjectures and surmises. No doubt such a possibility can not be ruled out but in the absence of any evidence, the Court can not presume any such fact that she has made statement in favour of accused persons due to threat or intimidation. Admittedly there is not an iota of evidence that she was threatened by the accused-appellants to depose in their favour. Here it would also be relevant to mention that alleged incident has been shown of 28.10.2014 at 12:00 noon but the first information report was lodged on 30.10.2014 and no explanation for delay in first information report has been shown. Though in such cases, the delay in lodging the first information report cannot be given much importance as in such matters, generally, victim hesitate to lodge the report but in the instant matter considering the facts emerged in cross-examination of prosecutrix, the delay in the first information report also assumes importance. In her cross-examination, she has also gone to the extent by saying that she has lodged the first information report at the instance of some villagers and that accused-appellants did not commit any bad/foul act against her. She has further stated that neither accused-appellants committed any robbery nor they abused her and they have also not extended any threat to her. No doubt, as mentioned above, the evidence of a hostile witness cannot be discarded as a whole and relevant parts thereof, which are admissible in law, may be used by the prosecution or the defence but there is no general proposition of law that in each case where prosecutrix turns hostile, the part of her testimony which supports the prosecution has to be necessarily acted upon. Whether the part of testimony of a hostile witness, which supports prosecution case, has to be acted upon by the court or not, would depend upon specific facts and circumstances of each case. Where the Court finds that the part of statement of hostile witness, finds support from some other evidence and such part inspires confidence and it appears that such witness has deliberately back-tracked from the prosecution version, in such cases the Trial Court may rely upon such testimony. However, where the hostility of witness is to the extent that it affects the very essence of testimony of such witness and in view of attending facts and circumstances of the case, his/ her testimony appears doubtful, in such case it is not safe to rely upon such testimony. In the instant matter, considering the version of cross-examination of prosecutrix, coupled with fact that there is delay of two days in lodging of the first information report and that the prosecutrix has not sustained any injury and her version is not supported by her medical examination, the statement of prosecutrix has been rendered unworthy of credit and does not inspire confidence. It is wholly unsafe to rely upon such testimony to base conviction for such a heinous offence like gang rape. It is a general principle of the criminal legal system that the prosecution must prove its case beyond all reasonable doubt, and the accused will benefit from any reasonable doubt. As held in case of *Chunthuram V State of Chattisgarh* (2010) 10 SCC 733 (relied by learned counsel for the appellant), it is well established principle in criminal law that if two views are possible on the evidence adduced in a case, one pointing to the guilt of the accused and the other to their innocence, the view favourable to the accused should be adopted.

18. In view of aforesaid discussion of evidence on record and position of law, I am of considered view that statement of of prosecutrix is not reliable and it is not safe to base conviction upon her testimony and thus, the prosecution failed to prove its case beyond doubt. The trial court did not appreciate the evidence in correct perspective and committed error by convicting the appellants. Thus, the impugned judgment and order passed by the Trial court is set aside and all the three accused-appellants, namely, Chaman, Amit @ Malu and Omveer Singh are acquitted of the charges levelled against them. The accused-appellants are stated in jail, they shall be released forthwith, if not wanted in any other case.

19. All the three criminal appeals are allowed.

Dated: 17.08.2023

Anand

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